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Case Name: 26PR202034

Case No.: *Estate of Rita Pauline Catalano*

The above-entitled action came on for hearing before the Honorable Lori E. Pegg on June 12, 2026 at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

Petitioner Regina Drysdale (“Petitioner”) initiated this case by filing a petition for probate seeking to administer the estate of her mother, Rita Catalano (“Decedent”), pursuant to a 2017 will. Objectors Lisa Boyer and Daniel Catalano (“Objectors”), acting co-trustees¹ of Decedent’s trust, the Rita P. Catalano Trust of 2000, object to the petition, asserting, inter alia, that Decedent executed a codicil, which Petitioner has not provided to the court and which nominated Daniel Catalano, rather than Petitioner, as executor.²

Currently before the court is Petitioner’s motion to amend her petition for probate. Objectors have opposed the motion and Petitioner has filed a reply.

DISCUSSION

I. Legal Background

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” [Citation.] Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ”[Citation.]’ [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings

¹ Petitioner disputes that Objectors are the legitimate co-trustees.

² The parties are also involved in trust-related litigation in dockets 22PR191805 and 22PR193527.

will prevail. [Citation.]” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

“Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448 [81 Cal.Rptr.2d 243].) But, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

II. Merits of the Motion

Petitioner seeks to amend her petition for probate to clarify the caption to indicate that she is seeking authorization to administer the estate under the Independent Administration of Estates Act, update the value of the estate and the factual allegations regarding Decedent’s former spouse and relatives, and add allegations that the first codicil to Decedent’s will was forged and that Daniel Catalano, the executor nominated in the first codicil has waived priority of appointment by failing to act.

Objectors oppose the motion, arguing that amendment would be futile and, even if it would not be futile, the proposed amendment does not address all of the deficiencies in the petition. First, Objectors assert that the proposed amendment does not identify any property subject to probate administration. They maintain that a petition for probate must state “[t]he character and estimated value of the property in the estate.” (Prob. Code, § 8002, subd. (a)(4).) Yet, the amendment only seeks to update the value of the property, not identify any assets subject to probate administration. Objectors take the position that there is no estate property and that all Decedent’s assets are trust property. Nonetheless, the court does not find that the amendment would be futile for this reason. Notably, Petitioner has indicated that the property she believes is subject to probate administration is personal property. As both parties appear to recognize, a motion to amend is not the proper vehicle for a determination of the merits of the

Petitioner's claims. (Prob. Code, § 8005, subd. (a)(3) [prescribing a hearing on a petition for probate wherein evidence of "[t]he character and value of the decedent's property" may be presented.]

Objectors next argue that Petitioner cannot establish that Daniel Catalano waived his appointment as personal representative by failing to act to administer the estate in the five years since Decedent's death. In general, "[t]he person named as executor in the decedent's will has the right to appointment as personal representative." (Prob. Code, § 8420.) However, "[a]n administrator with the will annexed shall be appointed as personal representative if no executor is named in the will or if the sole executor or all the executors named in the will have waived the right to appointment or are for any reason unwilling or unable to act." (Prob. Code, § 8440.) Objectors assert that the allegation that Daniel Catalano has failed to administer the estate in the five years since Decedent's death does not establish waiver and therefore, it does not establish that Petitioner is entitled to priority of appointment. Objectors cite no authority indicating that the conduct alleged cannot constitute waiver as a matter of law and, in general, waiver may be express or implied by conduct. Accordingly, the court finds that the amendment is not futile and that this issue is better adjudicated at the hearing on the petition or any another appropriate motion. Nor does the fact that the amended petition may not cure all defects with the original petition support denial of leave to amend. As mentioned above, leave to amend is liberally allowed. Any defects identified by the probate examiner may be cured via supplemental declaration or via the evidentiary hearing procedure.

Finally, Objectors argue that Petitioner cannot nullify the first codicil by simply alleging it is a forgery in an amended pleading. The court agrees. But, merely adding allegations to the petition that the first codicil was forged does not have the effect of establishing that disputed fact. As Objectors themselves contend, "[t]he validity and legal effect of the First Codicil can be resolved only through the appropriate contested probate procedure and evidentiary showing." (Opposition, p. 6:12-13.)

The motion to amend is GRANTED.

Objectors ask that the court's order "expressly provide that leave to amend does not adjudicate the validity of the First Codicil, Daniel's priority or alleged waiver, the existence or value of probate assets, or the sufficiency of Petitioner's allegations, and should permit Objectors to file a supplemental objection." (Opposition, p. 2:6-8.) The court will make this order. By allowing the proposed amended petition to be filed, the court makes no ruling regarding Daniel Catalano's priority for appointment, alleged waiver of appointment, the existence or value of any probate assets, or the sufficiency of Petitioner's allegations. Objectors may file an amended objection within 30 days of service of the proposed amended petition. (Code Civ. Proc., § 471.5, subd. (a).)

In her motion, Petitioner initially requested sanctions against Objectors under Code of Civil Procedure section 128.5. In her reply, she withdraws this request. Accordingly, the court does not address the request for sanctions.

CONCLUSION

The motion to amend is GRANTED. Petitioner may file and serve her proposed amended petition. Objectors will have 30 days after service of the amended petition to file their amended objection.

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